

 STATEWIDE POLICY	NUMBER 107-011-310	SUPERSEDES Policy 125-6- 310 June 20, 2001
	EFFECTIVE DATE June 20, 2001	PAGE NUMBER Pages 1 of 3
Division Enterprise Asset Management	REFERENCE ORS 276.010 OAR 125-075-0005 to 125-075-0015	
Policy Owner Facilities		
SUBJECT Capitol Mall Area Parks and Grounds, Use of	APPROVED SIGNATURE C. David White, Administrator	

PURPOSE

To specify policies and procedures to regulate the use of the Capitol Mall area parks and grounds which are owned or controlled by the Department.

APPLICABILITY

To specify policies and procedures to regulate the use of the Capitol Mall area parks and grounds which are owned or controlled by the Department.

FORMS

- Event Agreement form
- Premise Permit form

Forms available on Enterprise Asset Management website at:

<http://www.oregon.gov/DAS/EAM/pages/forms.aspx#leasing>

City of Salem Codes: <http://www.cityofsalem.net/Departments/Legal/Pages/SalemRevisedCodes.aspx>

DEFINITIONS

Department: Department of Administrative Services (DAS), Enterprise Asset Management Division (EAM).

EXCLUSIONS AND SPECIAL SITUATIONS

- The State Capitol Building, State Capitol State Park, and the Supreme Court Building, including their respective entrance areas are outside the jurisdiction of the Department. Direct inquiries to:
 - o Legislative Administration for use of the State Capitol building
 - o Oregon Parks and Recreation Department for use of the State Capitol State Park
 - o Office of the State Court Administrator for the Supreme Court building
- All exceptions and special situations must be submitted in writing and approved by the DAS-EAM Administrator or designee. The requesting agency represents that all internal agency policies have been met.

GENERAL POLICY

- I. The State Capitol grounds including Willson Park, Capitol Park, Mall Plaza, and other parks and grounds in the Capitol area as described in ORS 276.010, save and except that property used for residential purposes located in the northern portion of the Capitol area, are open to the public for use. Use by the public is subject to restrictions specified in OAR 125-75-005 as recited in this Policy.

- II. The restrictions specified in the City of Salem Codes 94.010 to 94.990 as attached hereto are adopted by the Department and made a part of this Policy to govern the use of the Capitol area parks and grounds, and enforced with changes stipulated under V, of this Policy.
- III. The Department shall administer this Policy through the O & M Section of the Division. The functions of the Regional Park Director specified in the said City Code 94.010 shall be performed by the O & M Manager.

O & M shall provide information when requested, schedule use and determine and charge fees when applicable. Any request for information, applications for permits or reservations for a park or any portion thereof for use should be sent to:

Events
DAS Facilities Division
Maintenance Section
1240 Ferry Street SE
Salem, OR 97301-4288
Phone: (503) 378-3664

- IV. Any use of the Capitol area parks and grounds for the following activities shall require use authorizations issued by the Division.
 - A. Sales and solicitations, as provided under the City of Salem Code 94.100.
 - B. Public demonstration, as provided under the City of Salem Code 94.090.
 - C. Any organized or group activity, as referenced in the City of Salem Code 94.200.
- V. Enforcement of this Policy shall be carried out by the Capitol Mall Patrol Office personnel in cooperation with the City of Salem Police Department with the following stipulations for the purposes of this Policy:
 - A. For the purposes of City Code 94.070 on throwing objects, Frisbees are excluded from prohibited "other missile."
 - B. For the purposes of City Code 94.100 on sales and solicitations, OAR 125-80-010 and Policy Manual 125-6-322 shall apply for granting permits.
 - C. For the purposes of City Code 94.110 on bathing, wading in such public body of water is exempted from the restrictions at the Wall of Water on Capitol Plaza only.
 - D. For the purposes of City Codes 94.160 to 94.180 relative to the use of motor vehicles and parking, OAR 125-75-005 and Policy Manual 125-6-501 shall apply.
 - E. For the purposes of City Code 94.190, the Division shall not permit any overnight use of the parks and grounds.
 - F. For the purposes of City Code 94.195 on the use of alcoholic beverages, the Division shall issue no such permits and OAR 125-75-015 and Policy Manual 125-6-321 shall apply.
 - G. For the purposes of City Code 94.200, the Division may choose not to set or post any signs for public information on opening and closing hours of the Capitol grounds. However, the Division will regulate organized activities to minimize traffic congestion and disruption of state business by noise, such as high amplification equipment.

- VI. No posters or placards may be placed on public grounds subject to this Policy, except those authorized by the Division, for the conduct of public business.
- VII. The State Capitol Building and the Supreme Court Building, including their respective entrance areas, are outside the jurisdiction of the Department. Any inquiry for the use of these buildings should be directed to either the Legislative Administration Committee, Capitol Use Services (phone 503-986-1384) or the Office of the State Court Administrator, attention Scott Crampton (phone 503-986-5550), respectfully.

PROCEDURE:

<u>Responsibility</u>	<u>Action</u>
Applicants	1. To request information or to reserve any area under the jurisdiction of the Department, call the Division at 503-378-3664 or write to: Events DAS Facilities Division Operations and Maintenance Section 1240 Ferry Street SE Salem, OR 97301-4288 2. Complete all information on Events Agreement for Capitol Grounds and return. 3. Abide by all stipulations and restrictions contained on Events Agreement for Capitol Grounds.
Division	1. Regulates the use of parks and grounds in the Capitol Mall area Maintenance Section according to this Policy. 2. Receives Events Agreement and approves as specified in this Policy. 3. Cooperates with the City of Salem Police Department in enforcing this Policy.